Chapter 11

The Lawyers Strike – at Kiran: She Strikes Back

PERHAPS THE MOST TENSE, TIRESOME AND NERVE-RACKING TIME THAT Kiran had to endure during her term of service was during the lawyers' strike that commenced in January 1988 and continued through June that year. However, the legal battle in and out of the courtrooms ended only in April 1990.

The events that triggered off the strike were as follows. Around 2 p.m., on 15 January 1988, Ratna Singh, an English honours student of St Stephen's College, New Delhi, came out of the toilet of the ladies' common room and saw a man wearing a green checked coat fleeing from the place where she had left her handbag.

Sensing mischief she gave chase and shouted for help. Kavita Issar, also an English honours student, saw her chasing the man in the green coat and joined the shouting. Anand Misra, a second-year chemistry honours student, heard the two girls shouting and caught the person whom they were chasing. The group was joined by Anand Prasad (second-year history honours) and Manjusha Damle (final year Sanskrit honours). Ratna Singh checked her handbag and declared that Rs 110, a cassette tape and her doctor's prescription were missing. The items were found on the person of the man they had apprehended. The college authorities were informed and the vice-principal of the college, Horace Jacob, duly notified the Roshanara Police Station. A subinspector of police, Kawal Singh, soon appeared on the scene. The culprit accepted his crime and maintained that he was an educated unemployed youth and had therefore resorted to stealing. He also admitted, in his own handwriting, to having stolen some money from girls' handbags a day earlier in the same place. A Delhi Transport Corporation (DTC) bus pass in the name of Manjusha Damle was also recovered from him. He gave a written statement wherein he stated that his name was Rakesh Kumar and that he lived at E-40, Model Basti, Delhi. A first information report (FIR), No. 9/88/U/S380/111/IPC was lodged with the Roshanara Police Station. During his stay at the police station, however, he gave another name and another address.

The investigating officer apparently knew that the apprehended person had been giving false names and addresses and so the former felt that the latter might try to give him the slip. However, since he was taking the accused in a DTC bus (which is always very crowded) he took the extra precaution of handcuffing him for the period till he produced him before the court. At the court, however, all hell seemed to break loose. Some of the lawyers present there recognized the handcuffed man to be one Rajesh Agnihotri, a lawyer practising at the Tees Hazari courts. The investigating officer was manhandled and shouted at. On learning the identity of the accused he, however, promptly removed the handcuffs. Metropolitan Magistrate Pradeep Chaddha dismissed all charges against the accused on grounds of lack of evidence. He also directed the commissioner of police, Delhi, to take action